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Open Enrollment (OE) For

Diabetes Self-Management Education Services

Open Enrollment No. 3202600156

Date of Release: May 14, 2026

Responses Due: November 10, 2026, by 10:00 a.m. CST

924-86 Vocational Training, All Types, Including Vocational Rehabilitation and Technical Education

952-40 Elderly Assistance Services

952-90 Training and Instruction Services, Clients, Not Staff

Sole Point of Contact for this OE

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TWC Procurement Portal

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Definitions

Table 1: Definitions

Term/Acronym	Definition
Addendum; Addenda; Amendment	A written addition, change, or supplement to this Solicitation that is posted to the ESBD and issued prior to the response due date.
Applicant	An entity or individual who submits a Provider Enrollment Packet in response to this Open Enrollment.
Business Day	The day and hours (Monday through Friday, 7 a.m. to 6:00 p.m. Central Time) at which TWC is open for business. TWC is closed for business on the scheduled holidays indicated by the State Auditor's Office available at https://hr.sao.texas.gov/holidays/. The terms "Working Day" and "Business Day" may be used interchangeably. All uncapitalized references to "day" shall mean calendar day.

Term/Acronym	Definition
Confidential Information	Any communication or record (whether oral, written, electronically stored or transmitted, or in any other form) provided to or made available to Contractor or that Contractor may create, receive, maintain, use, disclose or have access to on behalf of TWC that consists of or includes any or all the following: a. Customer Information; b. Protected Health Information (PHI), in any form including, without limitation, Electronic Protected Health Information or Unsecured Protected Health Information; c. Sensitive Personal Information, as defined by Texas Business and Commerce Code, § 521.002(a)(2); d. Federal Tax Information; e. Personally Identifiable Information (PII) as defined by Texas Business and Commerce Code § 521.002(a)(1); f. Social Security Administration Data, including, without limitation, Medicaid information; g. All privileged work product; all information designated as confidential under the constitution and laws of the State of Texas and of the United States, including the Texas Health and Safety Code and the Texas Public Information Act, Texas Government Code, Chapter 552; h. Personally Identifiable Information defined by 2 CFR 200.1; and i. Information deemed confidential under The Rehabilitation Act of 1973, 29 U.S.C. Chapter 16, as amended, and implementing regulations 34 C.F.R. Parts 361 through 396.

Term/Acronym	Definition
Conflict of Interest	A situation that creates a risk that professional judgment or actions will be unduly influenced by a personal interest or relationship and creates substantial conflicts with the proper discharge of duties required by a contract and the public interest. Each Applicant must comply with the content on Conflict of Interest located in the VR-SFP Manual, Chapter 3 Basic Standards.
Contract	The written agreement entered into by TWC and Provider, which will incorporate the contents of this Open Enrollment and the Provider's Application, except as may be provided in the Contract and any amendments thereto.
Contractor (also Provider)	A legal entity or individual who TWC is contracted with to provide goods and/or services for TWC Customers. Contractor can be used interchangeably with Provider, Service Provider, or Vendor.
Contract Term	The definite period of time that the Contract will remain in effect, including all stated renewals and extensions.
Customer	An individual that has met the TWC eligibility criteria and has been approved to receive TWC Vocational Rehabilitation (VR) services.
CTCD	Certified Texas Contract Developer.
CTCM	Certified Texas Contract Manager.

Term/Acronym	Definition
ESBD	The Electronic State Business Daily. An online platform administered by the Statewide Procurement Division (SPD) of the Comptroller of Public Accounts (CPA). The ESBD may be accessed as http://www.txsmartbuy.com/esbd.
IFA or Invitation for Applications	This document including all exhibits, attachments, forms, and Addenda, if any.
Fiscal Year (FY)	Texas State Fiscal Year, September 1 through August 31.
Older Individuals who are Blind (OIB)	An individual age 55 or older whose significant visual impairment makes competitive employment extremely difficult to attain but for whom independent living goals are feasible.
PCS or Procurement and Contract Services	A department within TWC's Business Operations division.
PS	Procurement Services, a section within TWC.
Provider	The Applicant(s) with whom TWC executes a Contract to provide the goods and/or services that this Solicitation requires.
SME	Subject Matter Expert
Solicitation	This IFA (formerly Open Enrollment) including all exhibits, attachments, forms, and Addenda, if any.

Term/Acronym	Definition
State	The State of Texas and its instrumentalities, including TWC, its officers, employees, or authorized agents, and any other state agencies.
Subcontractor	Any entity(ies) or person(s) providing goods or services under the Contract on Provider's behalf, whether or not the entity(ies) or person(s) has/have a written agreement with the Provider. The term does not include a state agency; rather a subcontractor may be an officer or employee of a state agency when the officer or employee contracts with a vendor in a private capacity.
TWC	Texas Workforce Commission.
Vocational Rehabilitation Division (VRD)	The TWC Vocational Rehabilitation Division (VRD) administers the Vocational Rehabilitation Services Program, which is a joint state and federally funded program to assess, plan, develop, and provide VR services for eligible individuals with disabilities, consistent with their unique strengths, resources, priorities, concerns, abilities, capabilities, interests, and informed choice so that these individuals can prepare for and engage in competitive integrated employment and achieve economic self-sufficiency. In accordance with the Rehabilitation Act of 1973, as amended by Title IV of WIOA (29 U.S.C. § 720 et seq.). VRD is the single designated state unit for the VR program.

Term/Acronym	Definition
Vocational Rehabilitation Standards for Providers Manual (VRSFP)	The VR Standards for Providers (VR-SFP) Manual focuses on the business practices, processes, and policies that must be followed for TWC and the Contractor to comply with federal and state laws and TWC rules and requirements. The VR-SFP Manual ensures TWC-VR Customers receive quality services. Each Contractor should review the VR-SFP Manual and forms for changes every thirty (30) calendar days. Each Contractor is expected to be familiar with and comply with the most recently published VR-SFP Manual and use the most recently published forms applicable to their Contract.
VPTS	Vendor Performance Tracking System, as described under Texas Government Code § 2262.055 and 34 TAC § 20.115. Reporting requirements and vendor performance factors considered in VPTS are described in Texas Government Code § 2155.089 and 34 TAC § 20.509. The VPTS is available at: https://www.txsmartbuy.gov/vpts.

ARTICLE I PURPOSE

The Texas Workforce Commission (TWC) is seeking Applications from qualified Service Providers to deliver services to be provided to Vocational Rehabilitation (VR) Customers served by TWC's VR division. This is an Open Enrollment (OE) opportunity.

Opportunities are available to provide Diabetes Self-Management Education Services in the state of Texas. Applicants must meet all requirements and specifications outlined herein to be eligible to provide Diabetes Self-Management services.

The TWC Procurement Services (PS) section will administer the procurement

process for this OE, which includes OE publication, handling of communications from Applicants, as well as managing the receipt of Applications for review.

Information regarding TWC and its programs is available online and can be currently accessed at www.twc.texas.gov.

ARTICLE II SCOPE OF WORK

2.1 OVERVIEW/BACKGROUND

TWC's mission is to promote and support a workforce system that creates value and offers employers, families, individuals and communities the opportunity to achieve and sustain economic prosperity.

This Open Enrollment is for Diabetes Self-Management Education Services. Diabetes self-management education is the process of developing the customer's knowledge, skills, and abilities that are necessary to manage diabetes and improve his or her health outcomes. Vocational Rehabilitation (VR) customers might require education about diabetes to address the cause of the disease. Diabetes self-management education provides adaptive techniques and/or equipment to help the customer self-manage his or her diabetes.

Assessment and teaching of blood sugar monitoring, medication delivery, and other self-care skills related to diabetes self-management require close, hands-on evaluation and training when working with individuals who are blind or visually impaired.

Diabetes self-management education services are based on the Association of Diabetes Care and Education Specialist's 7 Self-Care Behaviors™, which are:

- healthy eating;
- being active;

- monitoring;
- taking medications;
- healthy coping;
- problem solving; and
- reducing risk.

Diabetes self-management education services are for customers who:

- are newly diagnosed;
- need surgery or a medical procedure and are at risk of further complications because of poor diabetes management;
- are unable to maintain employment because of their diabetes;
- need additional training about diabetes management after losing their sight;
- must self-manage diabetes for admittance to training programs and for full participation in training such as that offered by the Criss Cole Rehabilitation Center;
- cannot benefit from community-based educational programs; and/or
- have unique needs that cannot be met through medical providers paid through the Maximum Affordable Payment Schedule.

2.2 PROVIDER REQUIREMENTS, RESPONSIBILITIES, AND TWC POLICIES

Providers must be knowledgeable about their responsibilities, the service requirements, and TWC policies applicable to them.

2.3 VR STANDARDS FOR PROVIDERS (VR-SFP) MANUAL

The VR Standards for Providers (VR-SFP) Manual focuses on the business

practices, processes, and policies that must be followed for TWC and the Provider to comply with federal and state laws and TWC rules and requirements. Providers must adhere to the current VR-SFP Manual when providing services to VR Customers.

An Applicant applying for a contract must comply with the following VR-SFP Manual chapters in addition to the OE SOW.

- Chapter 1: Introduction to Vocational Rehabilitation
- Chapter 2: Obtaining a Contract for Goods and Services
- Chapter 3: Basic Standards

Notice of upcoming changes to the VR-SFP Manual are published on the Vocational Rehabilitation Providers' Resources page at least thirty (30) calendar days in advance of the effective date of the changes. Each Provider is contractually responsible for maintaining compliance with the most current VR-SFP Manual.

2.4 STAFF QUALIFICATIONS AND TRAINING

Before any services are provided, the service provider director must approve the VR3455, Provider Staff Information Form, completed by staff such as a trainer and aides, and submit the approved form to the provider's assigned contract manager and assigned regional program specialist. A sample VR3455 Provider Staff Information Form is included with this solicitation as **Attachment 7, VR3455 Provider Staff Information Form**. The VR3455 documents the provider's qualifications and provides evidence of meeting those qualifications by providing the:

- provider's staff résumé demonstrating diabetes education experience as an essential function of the job; and
- documentation of required continuing education hours on diabetes

education topics.

2.4.1 Diabetes Educators

A diabetes educator must have the following criteria:

- at least one year of paid experience or two years of documented voluntary experience providing diabetes education as an essential function of the job or responsibilities while holding a current, active, unrestricted license in Texas as one of the following:
    - A clinical psychologist;
    - A Licensed Professional Counselor (LPC);
    - An occupational therapist;
    - An optometrist;
    - A pharmacist;
    - A physical therapist (PT);
    - A physician (MD or DO);
    - A podiatrist;
    - A registered nurse (RN) (includes nurse practitioners and clinical nurse specialists);
    - A dietitian or dietitian nutritionist holding active registration with the Commission on Dietetic Registration (CDR);
    - A physician assistant (PA) holding active registration with the National Commission on Certification of Physician Assistants (NCCPA);
    - An exercise physiologist holding active certification as an American College of Sports Medicine Certified Clinical Exercise Physiologist

(ACSM-CEP®);

- A health educator holding active certification as a Master Certified Health Education Specialist (MCHES®) from the National Commission for Health Education Credentialing (NCHEC);
- A health professional with a minimum of a master's degree in social work;
- A certified diabetes care and education specialist (CDCES); or
- A holder of the Board Certified – Advanced Diabetes Management (BC-ADM) credential;

- 15 hours of continuing education units (CEUs) within the 12 months immediately preceding the application for contract and/or the submission of the individual VR3455, Provider Staff Information Form as outlined in VR-SFP Manual, 7.2.2; and
- Completed the Texas Confidence Builders as outlined in VR-SFP Manual, 7.2.3.

Note: In lieu of paid diabetes education experience, evidence of two years of documented voluntary diabetes education experience will be considered. Examples of appropriate documentation include training on an evidence-based diabetes education curriculum; letters of recommendation describing the volunteer work from two individuals who oversaw the diabetes education, including the program leader; or evaluations of the diabetes education with the volunteer's name visible and the protected information redacted.

2.4.2 Annual Training

The diabetes educator must maintain the qualifications in VR-SFP Manual,7.2.1 and maintain continuing education units (CEUs) in diabetes self-management education topics from an agency approved by the diabetes educator's licensing

or certifying body. The CEUs may not include the Texas Confidence Builder training.

Table 2: Diabetes Educator Required CEUs

Diabetes Educator	CEUs Required	Frequency
• Clinical psychologist ○ Occupational therapist ○ Optometrist ○ Pharmacist ○ Physical Therapist ○ Physician (MD or DO) ○ Podiatrist; ○ RN (includes nurse practitioners and clinical nurse specialists) ○ Dietitian or dietitian nutritionist holding active registration with the CDR ○ PA holding active registration with the NCCPA ○ Exercise physiologist holding active certification as an ACSM-CEP®	15	• Within the 12 months immediately preceding the application for contract and/or submission of the individual's VR3455, Provider Staff Information Form; and • 15 hours every 2 years beginning on the date the contract is awarded

Diabetes Educator	CEUs Required	Frequency
○ Health educator holding active certification as an MCHES® from the NCHEC ○ A health professional with a minimum of a master's degree in social work		
• CDCES • BC-ADM	10	Within the 12 months immediately preceding the contract date and an additional 10 hours every two years beginning on the date the contract is awarded

2.4.3 Texas Confidence Builder Training

All diabetes educators must attend and participate in the VR Texas Confidence Builder Training. This 14-hour training is completed before a contract is awarded or before services are provided by the diabetes educator, and the training must be retaken every two years.

If the Texas Confidence Builder training is not available at the two-year renewal date, the VR diabetes program specialist and the contract manager must request that the requirement be waived or postponed. The request must be documented and approved by the VR director using VR3490, Temporary Waiver of Qualifications. **Attachment 9, VR3490 Temporary Waiver of Qualifications** is provided as an example to this solicitation.

VR does not pay the provider's travel costs for transportation, food, and lodging to attend Texas Confidence Builder Training or other trainings.

2.5 ASSESSMENT OF DIABETES SELF-MANAGEMENT

The following sections detail Assessment of Diabetes Self-Management, including the information gathered, the recommended equipment, and the resulting education and support plan.

2.5.1 Assessment of Diabetes Self-Management Service Description

A diabetes self-management assessment is the diabetes educator's evaluation of a customer's ability to manage the diabetes. The assessment must gather information about the customers:

- medical history;
- age;
- cultural influences;
- beliefs and attitudes about maintaining good health; and
- knowledge about diabetes.

A diabetes self-management assessment is provided in person with the trainer and customer at the same location. The diabetes self-management assessment may be provided remotely only with a VR director approved VR3472, Contracted Service Modification Request, which is provided as **Attachment 8** to this solicitation. Remote services must follow VR-SFP 3.4.8 Remote Service Delivery.

It is recommended that the diabetes educator use adaptive equipment and disposable supplies for demonstration during the assessment. The suggested items include:

- a talking blood-glucose meter;

- an insulin-measuring device, such as Count-A-Dose, which allows a blind or vision-impaired individual with diabetes to fill an insulin syringe without assistance;
- a syringe magnifier;
- a portion-control plate, such as Meal Measure;
- an insulin pen (or other injectable device for demonstration purposes);
- a talking blood-pressure monitor; and
- disposable supplies such as test strips, syringes, and insulin.

The customer and instructor develop an education and support plan that is created from evidence-based approaches for effective health communication and education while taking into consideration the customer's barriers to self-management, abilities, and expectations as well as information from the diabetes self-management assessment. (ADA, 2016)

The initial diabetes self-management assessment helps the diabetes educator recommend the skills training from which the customer would benefit. The training areas include information and skills relating to:

- an overview of the pathophysiology of diabetes;
- nutrition;
- exercise and activity;
- blood-glucose monitoring and how to use the monitoring results;
- diabetes-related complications;
- management of sick days;
- medical treatment;
- medication;
- foot, skin, and dental care;

- preconception care, pregnancy, and gestational diabetes, if applicable;
- insulin;
- use of the health care system;
- community resources;
- stress and psychosocial adjustment;
- goal setting;
- employment aspects and/or barriers related to diabetes; and
- adaptive diabetes self-management equipment and tools.

The initial assessment should evaluate all the above topics. The training plan should recognize the partial or complete deficits in self-management knowledge and identify the specific deficits that should be addressed. If the results of the initial diabetes self-management assessment warrant, training may begin immediately if:

- an initial diabetes self-management assessment was conducted in the previous 12 months;
- no significant change to the customer's medical status, including no new medications or new complications, has occurred;
- a service authorization has been issued; and
- the service provider has adequate information to begin skills training based on the results of the Initial Diabetes Self-Management Assessment.

Should the provider of the diabetes education training be different from the provider who conducted the initial assessment, the VR2888, Diabetes Self-Management Education Assessment (**Attachment 4**), and the VR2901, Diabetes Self-Management Pre- and Post-Assessment (**Attachment 6**), should

be reviewed by the new provider prior to initiating diabetes education training.

If the new diabetes educator does not agree with the original assessment recommendations, a consultation between the VR counselor, new diabetes educator, and state office program specialist for diabetes education is scheduled to establish an agreement on appropriate diabetes education for the VR customer.

2.5.2 Process and Procedure

The initial diabetes self-management assessment may be conducted before or after eligibility is determined.

The diabetes self-management assessment provider begins services once a signed VR service authorization and a VR5000, Referral for Provider Services form (**Attachment 10**), completed by the VR counselor, or the Independent Living Services for Older Individuals Who Are Blind (ILS-OIB) worker, have been received.

The VR5000, Referral for Provider Services form:

- indicates why the customer is referred for diabetes education evaluation; and
- describes issues and/or questions that are addressed in the diabetes educator's report.

The initial diabetes self-management assessment must not exceed two hours and must be held for each customer individually.

The provider must discuss additional hours with the VR counselor or the ILS-OIB worker and the VR diabetes program specialist. The request must be documented and approved by the VR director using VR3472, Contracted Service Modification Request for Blind and Visually Impaired Services.

2.5.3 Education and Support Plan

The diabetes educator develops a written education and support plan in the Overall Recommendations section of VR2888, Diabetes Self-Management Education Assessment.

VR staff and the diabetes educator ensure that the education and support plan is appropriate, based on the customers:

- age;
- type of diabetes (1 or 2);
- history of diabetes;
- cultural influences;
- learning abilities; and
- disability.

Diabetes educators must use the talking blood-glucose meter recommended by the VR state office diabetes program specialist to:

- assess the customer's glucose (blood sugar) level;
- assess the customer's understanding of how to check blood sugar properly; and
- provide skills training to the customer.

If the diabetes educator recommends using a different type of talking meter, the VR diabetes program specialist must authorize the purchase before the equipment is purchased, and skills training occurs.

The diabetes educator completes the assessment of the customer's ability to manage the diabetes and makes recommendations for training, equipment, and services using VR2888, Diabetes Self-Management Education Assessment. The assessment report must be submitted to VR within 35 days of completion

of the assessment.

Behavior change goal setting empowers the customer to fully engage in personal problem solving to change behavior and improve outcomes. Using person centered, informed decision making, the diabetes educator guides the customer in the skill of goal setting by assisting them to

- select an activity that best suits the customer's self-management needs,
- help the customer identify strategies and resources for success as well as barriers, and
- plan a course to achieve the goal.

An initial behavior change goal must be set at the initial assessment. This is the customer's goal and action plan.

If the diabetes educator cannot schedule the visit with the customer to initiate the assessment within three calendar weeks, then the educator must notify the VR counselor by email, paper mail, or fax. VR may determine that it is necessary to cancel the service authorization and identify a new provider.

2.5.4 Outcomes Required for Payment

The diabetes educator documents the two-hour initial diabetes self-management assessment and other findings for each customer on the:

- VR2888, Diabetes Self-Management Education Assessment; and
- VR2901, Diabetes Pre- and Post-Assessment.

All forms must be completed in their entirety for the provider to be paid. As appropriate, the provider uses the following notations:

- N/A for "not applicable"
- N/D for "not disclosed by customer"
- N/E for "not evaluated"

The initial assessment fields are completed on the VR2901. The form is saved electronically so that the post-assessment fields can be completed later.

The VR2888, Diabetes Self-Management Education Assessment, reports the information that the diabetes educator captured during the initial assessment as well as the recommendations for equipment and training.

The VR2901, Diabetes Pre- and Post-Assessment, allows a comparison of the customer's knowledge of diabetes management before and after training.

2.6 DIABETES SKILLS TRAINING

The following section describes the expectations of the Diabetes Skills training after the client assessment.

2.6.1 Diabetes Skills Training Service Description

Diabetes skills training is provided by a diabetes educator who instructs and counsels the customer and family by means of individual and/or group skills training sessions that have been authorized by means of a service authorization.

Initial Diabetes skills training is provided in person with the trainer and customer at the same location and covers the following topics:

- Equipment training (whether purchased by TWC or using comparable benefits)
- The first hour of healthy eating
- The first hour of discussing patterns and trends
- The first half hour of being active
- The first quarter hour of foot care

The initial diabetes skills training may be provided remotely only with a

VR3472, Contracted Service Modification Request for Blind and Visually Impaired Services approved by the VR director before services begin. Remote services must follow VR-SFP 3.4.8 Remote Service Delivery.

After initial diabetes skills training is provided, additional teaching for review or reinforcement may be completed in person, by phone, or by video conference. Training topics may include the following:

- Introduction to diabetes or prediabetes
- Healthy coping
- Taking medication
- Reducing risk
- Problem solving

Diabetes skills training is intended to:

- provide self-management education;
- identify best methods for managing diabetes medication(s); and
- help the customer identify barriers, solve problems, and develop coping skills to achieve effective self-care and behavior changes.

Diabetes skills training helps customers set goals and make effective health and care decisions that fit their values and lifestyles. Diabetes educators help customers:

- develop a plan to improve their health;
- develop goals through individualized problem solving;
- provide motivation; and
- incorporate health recommendations into daily life.

The number of training hours recommended for individual diabetes self-management is based on:

- the initial assessment; and
- the topics covered that are related to the customer's vocational goals.

Up to 12 hours of skills training for diabetes self-management can be provided:

- individually;
- in a group of two to eight customers; or
- as a combination of one-on-one and group training sessions

Diabetes educators are reimbursed only for the time spent teaching customers. Trainers are not reimbursed for:

- planning time, such as attending meetings or talking with VR staff; or
- time spent completing and submitting the required paperwork.

2.6.2 Process and Procedure

The VR counselor or the Independent Living Services for Older Individuals Who Are Blind (ILS-OIB) worker submits a referral and issues service authorizations for diabetes skills training.

The diabetes educator must divide all diabetes skills training into one to two-hour segments to ensure that the segments do not fatigue the customer and consequently reduce the benefit of the skills training. If a segment is less than two hours, the provider must document on the VR2884, in the Observations and Comments section, how this meets the customer’s individual needs.

The diabetes educator helps the customer develop specific, measurable, achievable, realistic, and timely (SMART) goals.

A new behavior-change goal should be set at each visit between the educator and the customer and achievements evaluated at the next visit. The diabetes educator helps the customer overcome barriers to success and employ

problem-solving strategies.

It is recommended that the diabetes educator use adaptive equipment and disposable supplies for demonstration during training such as:

- a talking blood-glucose meter;
- an insulin measuring device, such as Count-A-Dose, that allows a blind or vision-impaired individual with diabetes to fill an insulin syringe without assistance;
- a syringe magnifier;
- a portion-control plate, such as Meal Measure;
- an insulin pen (or other injectable device for demonstration purposes);
- a talking blood pressure monitor; and
- disposable supplies such as test strips, syringes, and insulin.

The diabetes educator documents the provision of education materials, resources, and referrals on VR2884, Diabetes Self-Management Educator Notes.

The VR counselor or the ILS-OIB worker is responsible for approving the purchase of the recommended equipment or supplies. Documentation should identify:

- what was taught;
- what the customer gained from the instruction; and
- any barriers or gaps in knowledge.

If the customer is unable to participate in skills training on diabetes self-management because of his or her health, the diabetes educator must inform the VR counselor by email, paper mail, or fax within three business days. The diabetes educator must document such notification in the customer's file.

2.6.3 Outcomes Required for Payment

Service providers must document each two-hour skills training session provided to each customer using VR2884, Diabetes Self-Management Educator Notes.

A complete and accurate invoice may be submitted after completion of the services. All required documentation must be submitted within 35 calendar days of the date that the service is provided, including initial assessment, skills training, and post-training assessment.

If the diabetes self-management education services include providing the customer with a talking blood-glucose meter or other diabetes equipment, the diabetes educator must:

- coordinate receipt of the equipment with the local field office that purchased the service;
- submit a VR2889, Diabetes Self-Management Education Services Adaptive Diabetes Equipment Receipt;
- deliver the equipment or supplies to the customer;
- have the customer sign the VR2889 to acknowledge receipt of equipment or supplies;
- fill out the manufacturer's warranty card by mail or online; and
- document on VR2889 that the warranty card has been submitted.

2.7 POST-TRAINING ASSESSMENT

The post-training assessment is the final meeting provided for diabetes services. In this one-hour assessment, the customer and diabetes educator develop a follow-up plan for ongoing support. The plan includes information about goals, educational and equipment outcomes, and ongoing needs.

2.7.1 Post-Training Assessment Service Description

The diabetes educator conducts post-training assessments no sooner than 30 calendar days after the skills training is complete.

As part of the post-training assessment, the diabetes educator:

- reviews the skills training provided; and
- reinforces the behavioral changes.

The post-training assessment must be completed for all customers 30 days after the last training session. The post-training assessment may be completed in person, by phone, or by video conferencing with the customer as described in VR-SFP 3.4.8 Remote Service Delivery. The preferred method to complete the post-training assessment is in person. If a post-training assessment must be provided sooner than 30 calendar days after the skills training, the trainer must request approval from the referring VR counselor or the OIB worker before the post assessment being completed. The VR counselor or OIB worker requests approval from the VR director using VR3472, Contracted Service Modification Request for Blind and Visually Impaired Services.

2.7.2 Post-Training Assessment Process and Procedure

To document the one-hour post-training assessment, the diabetes educator completes the:

- VR2900, Diabetes Self-Management Education Post-Training Assessment; and
- VR2901, Diabetes Pre- and Post-Assessment.

To evaluate the customer's progress, the post-assessment fields are completed on the same VR2901, Diabetes Pre-and Post-Assessment that was submitted at the initial assessment.

2.7.3 Outcomes Required for Payment

The following documentation must be submitted within 35 calendar days of completion of the post-training assessment:

- Initial assessment
- Skills training
- Post-training assessment

The provider documents all conversations that he or she has had with the VR counselor, the OIB worker, and other staff about customers whom that provider is serving.

2.8 DIABETES SELF-MANAGEMENT EDUCATION SERVICE FEES

The following table outlines the approved service fees for Diabetes Self-Management Education Services. These fees are subject to change as updates are made to the Vocational Rehabilitation Standards for Providers Manual.

Table 3: Diabetes Self-Management Education Services Fee Schedule

Diabetes Self-Management Education Services	Unit Rate	Comment
Diabetes Self-Management Assessment	$117.00 per hour	• Two-hour initial assessment • Includes only the time spent assessing the customer
Diabetes Skills Training (Individualized Services Only)	$117.00 per hour	• Includes only the time spent teaching skills to the customer • Each session should be two hours

Diabetes Self-Management Education Services	Unit Rate	Comment
Diabetes Skills Training (Group Services Only)	$60.00 per hour	• Includes only the time spent teaching skills to the customer • Group services require a minimum of two customers and no more than eight customers per group
Post-training Assessment	$117.00 per hour	• One-hour post-assessment session 30 days after completion of training • Includes only the time spent assessing the customer

2.9 SERVICE AREA

This is a statewide open enrollment solicitation. All Texas counties are included in this solicitation. If awarded a contract for these services, the Provider(s) may serve VR Customers throughout the state of Texas upon receipt of an approved service authorization issued on behalf of a VR Customer.

2.10 BACKGROUND CHECKS

VR-SFP Manual, Chapter 3 Basic Standards requires each Provider to run background checks on each Provider staff member who will interact with any VR Customer. This includes any Provider staff who have any communication or other contact whether in person, on paper, by voice, by sign language,

electronically or any other method. The only exception is for Provider staff who never communicate with or are physically present with a VR Customer. Background checks must be completed by the Provider before the Provider staff interacts with any VR Customer.

Applicants and Providers are responsible for obtaining a background check for all applicable Provider staff. A background check consists of running a name-based search from the Texas Department of Public Safety and checking the National Public Sex Offender public website.

Contractors that will provide goods or services directly to VR customers must run a criminal background check on each staff member who will interact with any VR customer. This includes any staff who have any communication or other contact whether in person, on paper, by voice, by sign language, electronically or any other method. The only exception is for staff who never communicate with or are physically present with a VR customer. Background checks must be completed by the contractor before the employee interacts with any VR customer. If a contractor elects not to conduct background check on a staff member, the contractor must demonstrate that the staff member has never interacted with any VR customer in any way on any subject. Refer to the Background Check FAQ for additional questions. All provisions in this section apply equally to any subcontractor.

Contractors are responsible for purchasing and conducting a background check. A background check consists of running a name-based search from the Texas Department of Public Safety and checking the National Public Sex Offender public website. How To Use the Conviction Name Search - Criminal History Conviction Name Search (texas.gov) provides instruction in how to use the Texas Department of Public Safety website, and the National Public Sex Offender website provides information on the program and use of the registry. Contractors may also conduct a more comprehensive background check on

their staff. A more comprehensive background check may substitute for the Texas DPS name-based search.

Contractors must maintain a record of all background checks conducted, including a screenshot or printed copy from the Texas DPS name-based search and from the National Public Sex offender registry if no results are found. Contractors must also complete the Background Checks Attestation and Release Form for all staff, which includes:

- The staff person's first name and last name;
- Type of background search conducted;
- Date background search was conducted;
- If the search returns a conviction;
- Date the national public sex offender website search was conducted; and
- If the search returned a result.

If the background search returned a conviction, the contractor must also document:

- If the conviction is barred per the Convictions Barring Vendor Staff from Performing Services for TWC list;
- Whether an exception has been sought;
- If an exception was granted, by whom, and on what date.

Contractors must maintain the Background Checks Attestation and Release Form and background check records on file for a minimum of 7-years. TWC may request to review background check records at any time. If background check records are not available to review at time of request, the contractor must recreate the search.

Any contractor staff who appear in the National Public Sex Offender database

are immediately barred from providing services with TWC.

Any contractor staff member who has a conviction listed on the Convictions Barring Vendor Staff from Performing Services for TWC list must not have any interactions with TWC-VR customers. TWC will consider an exception in some cases to offenses listed under subsection (b) and (c) of the list. Contractors are responsible for requesting an exception. To request an exception, follow the Exception to Background Check Instructions. Any exception must be approved by the VR Director or designee before any interactions with VR customers occur.

A background check is only valid for 3 years. An updated background check must be obtained no later than the 3-year anniversary date of the original background check, or the contractor must remove the employee from interacting with VR customers on and after the date the background check expires.

For a contractor to self-report noncompliance with background checks refer to VR-SFP 3.2.11 Incident Reporting.

Limited contracted services are exempt from the background check requirement, such as for certain types of entities, procurements, services, or goods. See Contracted Services Exempt from Background Checks for a full list of contracted services that are exempt from the background checks requirement.

For more information on required background checks refer to the following resources:

- VR-SFP Manual, Chapter 3 Basic Standards, Section 2.18 Background Checks
    - Convictions Barring Contractor Staff from Performing Services for TWC

    - Contracted Service Exempt from Background Checks
    - Exception to Background Check Instructions
    - Background Check FAQ
- Form VR1307 Background Checks Attestation and Release Form found at https://www.twc.texas.gov/programs/vocational-rehabilitation/forms
- Webinar: Background and National Public Sex Offender Requirements

2.11 TRANSPORTATION OF VR CUSTOMERS

Transportation of VR Customers by a Provider (or Provider's staff) is not required. However, if a Provider (or Provider's staff or Provider's subcontractors) do transport a VR Customer in the Provider's vehicle or Provider's staff personal vehicle, they must meet the minimum liability requirements of the Texas Department of Insurance. The Provider must maintain current proof of insurance for any Provider staff who transports VR Customers. When Provider staff transports VR Customers in personal vehicles, the Provider staff must submit to VR proof of auto liability insurance as required by the Texas Department of Insurance with Form VR3455.

Verification statements on Form VR3455 must be signed by the Provider staff represented on the form and the Provider's Director appointed by the legal authorized representative.

2.12 PROVIDER'S DIRECTOR

Each Provider/Entity must have a Director who meets the qualification as stated in the VR-SFP Manual, Chapter 3 Basic Standards. The Provider's/Entity's legally authorized representative must appoint Director(s) using Form VR3441A. The Provider's/Entity's Director must also have a VR 3455 included in the Application. Anytime the VR3455 is completed and/or

updated the Provider must keep a copy on file and submit it to VR. For additional information refer to VR-SFP Manual, Chapter 3 Basic Standards.

2.13 PROVIDER STAFF PROVIDING SERVICES TO VR CUSTOMERS

For any service selected by the Applicant on VR3441B, the Applicant must have **at least one (1) person** who meets the qualifications to provide the service(s) as described in Article II Scope of Work.

Each Provider staff must have VR3455 with the supporting documentation (resumes, transcripts, proof of insurance, and credentials) included in the Application.

After contract award, a VR3455 with supporting documentation must be submitted for **each** person who will be providing services under the Contract. Each Provider must submit Form VR3455 and the supporting evidence that the staff member meets the required qualifications within 30 days of:

- hiring new staff member;
- making a significant change to a staff member's job duties such as fundamentally altering the nature of the job, requiring new skills, responsibilities, or a substantial time commitment;
- changing staff qualifications and/or credentials; or
- terminating a staff member.

For additional information refer to the VR-SFP Manual.

ARTICLE III GENERAL INFORMATION

3.1 AUTHORITY

TWC is soliciting the services stated in this Solicitation under the statutory authority of Texas Labor Code §352.060.

All official communication (including, but not limited to, Schedule of Event changes, and Addenda will be posted to the Electronic State Business Daily (ESBD). TWC has no responsibility to communicate personally with each potential Applicant for this OE. Each interested party is solely responsible for checking the ESBD for official TWC communication regarding this OE.

3.2 SCHEDULE OF EVENTS

The dates in this Schedule of Events are tentative, and TWC reserves the right to modify these dates at any time. At the sole discretion of TWC, events listed in the Schedule of Events are subject to changes and cancellation. Scheduling changes or cancellation made prior to the Deadline for Submission of Applications will be published as an Addendum posted to the Electronic State Business Daily (ESBD) and the TWC Procurement Portal.

Applicant is required to sign and return all Addenda related to the Open Enrollment.

Table 4: Schedule of Events

EVENT	DATE and TIME
Open Enrollment Period	**Start Date:** May 14, 2026 **End Date:** November 10, 2026, by 10 a.m. CST **NOTE:** This solicitation may be closed sooner than the published end date if TWC receives sufficient applications to cover all required needs.

Applicant must submit their Application to TWC within the open enrollment period in accordance with Schedule of Events shown above, or as changed via a notification of an Addendum posted to the ESBD.

NOTE: TWC reserves the right to close this solicitation at any time prior to the published deadline. If TWC determines that a sufficient number of applications

or awarded contracts exist, this solicitation will be closed.

3.3 CONTRACT DOCUMENTS

The Contract(s) resulting from this solicitation may consist of the provisions in this OE (including its attachments, forms, exhibits, and any Addenda); the Provider's Application, any TWC Request for Revised Application, the Provider's Response to the Request for Revised Application, and TWC's Service Authorization (SA). No prior agreement or understanding, oral or otherwise, of the parties or their agents will be valid or enforceable unless embodied in these documents. In the event of a conflict between the provisions of these documents, the documents are given the following order of priority: (1) TWC SA; (2) most recent Request for Revised Application (if any); (3) Provider's Response to the Request for Revised Application; (4) Request for Application (OE); and (5) Provider's Application.

TWC may elect to have the Contract(s) resulting from this OE consist of a single document. This document will contain all rights and duties of the parties extracted from the relevant terms and conditions of the OE (including its attachments, forms, exhibits, and any Addenda), the Provider's Response, the Request for Revised Response, if any, and Provider's Response to the Request for Revised Response, if any. Prior to award, TWC will prepare the Contract for review by the Provider.

Discussions may be had concerning possible revisions to the draft Contract to clarify points, further define Contract text, or to correct minor technicalities. These discussions are to be finalized and all requests for revisions resolved within ten (10) Business Days after the Provider receives the draft Contract for review or such additional time that may be agreed to by TWC. If discussions are not finalized within such time frame, the Application/Enrollment Packet may be rejected.

3.4 ATTACHMENTS AND FORMS

To ensure efficient and timely processing, please adhere to the following guidelines for form submission:

1. Documentation Placement: All supporting documentation must be collated directly behind its corresponding form.
2. Duplicate Forms: Duplicate forms must not be submitted.
3. Specific Example: For instance, if multiple Form 3455s are submitted, the supporting documentation pertinent to each staff member must be appended directly to their specific Form 3455.

Please be advised that improperly organized applications may be rejected or experience significant processing delays.

Table 5: Attachments and Forms

Attachment/Form	Title
Attachment 1	VR OE T&Cs (12/18/2025)
Attachment 2	OE Application Submission Checklist
Attachment 3	VR2884, Diabetes Self-Management Educator Notes
Attachment 4	VR2888, Diabetes Self-Management Education Assessment
Attachment 5	VR2900, Diabetes Self-Management Education Post-Training Assessment
Attachment 6	VR2901, Diabetes Self-Management Pre- and Post-Assessment
Attachment 7	VR3455, Provider Staff Information Form
Attachment 8	VR3472, Contracted Service Modification Request
Attachment 9	VR3490, Temporary Waiver of Qualifications
Attachment 10	VR5000, Referral for Provider Services
Form 1	Execution of Application Name convention for submission: APPLICANT Name_Execution of Application

Form 2	W-9 and Direct Deposit Form (VR 1020) • Complete the Form VR1020, TWC Substitute W-9 and Direct Deposit. • Refer to the VR1020 instructions and to TWC Substitute W-9 and Direct Deposit Form video for guidance. • If the TWC1020 shows a "Business Name" (DBA) designation in Box 2, include a copy of County DBA registry letter. • If the TWC1020 uses an "EIN" in box 6, include a copy of IRS letter assigning Employer Identification Number. Name convention for submission: APPLICANT Name_W-9
Form 3	Child Support Certification (VR 1305) • Complete Form VR1305, Child Support Certification. • Refer to the VR1305 instructions for additional guidance. • Provide the name and social security number (SSN) of the individual or sole proprietor, or if not a sole proprietorship, of each partner, shareholder, or owner with an ownership interest of at least 25 percent of the business entity. • If no one person owns 25 percent or more of the business, state "Not Applicable (N/A)" in the Name/SSN field and complete the remaining sections. • Form VR1305 must be signed by the entity's legal authorized representative. Name convention for submission: APPLICANTName_VR1305

Form 4	TWC VR Standards for Provider Certification (VR 3443) • Complete Form VR3443, TWC VR Standards for Provider Certification. • Form VR3443 must be signed by the entity's legally authorized representative. Name convention for submission: APPLICANT Name_VR3443
Form 5	Conflict of Interest Certification (VR 3444) • Complete the Form VR3444, Conflict of Interest Certification. • Form VR3444 must be signed by the entity's legally authorized representative. Name convention for submission: Applicant's Name_VR3444
Form 6	Provider Insurance Verification (VR 3445) • Applicants with or without insurance must complete the form VR3445, Provider Insurance Verification. • When the Applicant has insurance, a current and accurate certificate of insurance from the Association for Cooperative Operations Research and Development (ACORD) or its equivalent must be attached to Form VR3445. Name convention for submission: APPLICANT Name_VR3445
Form 7	Entity Headquarters Information Management Form (VR 3441A) • Complete the Form VR3441A Entity Headquarters Information Management Team to record the Applicant's management team information. Name convention for submission: Applicant's Legal Name_VR3441A

Form 8	Entity Headquarters Information - Services (VR 3441B) • Complete Form VR3441B, Entity Headquarters • Information- Part B-Services form to describe the Applicant's staff experience and to indicate what services the Applicant is applying for to gain a contract. • To be eligible to apply for a service the Applicant must have **at least one** (1) person who meets the qualifications to provide the service at application • Name convention for submission: APPLICANT Name_VR3441B
Form 9	Entity Headquarters Information – Location(s) (VR 3441C) • Complete Form VR3441C, Entity Headquarters Information - Location(s) form. • Form VR3441C must be completed by all Applicants to record the counties where the **Applicant is able to provide services with the staff currently hired**. Counties can be added and removed without amending the contract as staff availability changes by completing and submitting a new Form VR3441C to the assigned regional quality assurance specialist. Name convention for submission: APPLICANT Name_VR3441C

Form 10	Entity's Physical Location(s) – Part A – Service Contracts Certification (VR 3442A) • Complete the Form VR3442 A, Entity's Physical Location(s)- Part A- Service Contracts Certification Statement. • Form VR3442A must be completed by the Applicant to indicate if the Applicant has a physical location. The VR3442A form must be submitted even if the Provider does not have a physical location. Name convention for submission: APPLICANT Name_VR3442A
Form 11	Entity's Physical Location(s) – Part B – General Information Service Contracts (VR3442B) • Complete Form VR3442 B - Entity's Physical Location(s)-Part B- General Information Service Contracts when applicable. • Form VR3442B must be completed for **each** physical location the entity has. If the entity does not have any physical locations, the Form VR3442B is not required. Name convention for submission: APPLICANT Name_VR3442B

Form 12	Provider Staff Information Form(s) with Supporting Documentation (VR 3455) • Complete a Form VR3455, Provider Staff Information and attach required supporting documentation (resumes, transcripts, proof of insurance, and credentials) to demonstrate the staff person, including the Director, meets the required qualifications as stated in the VR-SFP Manual. • When a staff person will be transporting VR customers in personal vehicles, the staff person must submit proof of auto liability insurance as required by the Texas Department of Insurance with Form VR3455. • Verification statements on Form VR3455 must be signed by the staff person represented on the form and the Director appointed by the legal authorized representative. Name convention for submission: *APPLICANT Name*_ Staff Legal Last Name_VR3455

3.5 SOLE POINT OF CONTACT

All requests, questions, or other communication about this OE must be submitted through the TWC Procurement Portal and will be directed to the Sole Point of Contact below:

Meghan Osborn, CTCD

Procurement Lead

TWC Procurement Portal

3.5.1 Prohibited Communication

Except as provided in Section 3.5 Sole Point of Contact, a potential Applicant and Applicant that has submitted an Application is prohibited from any communication with TWC regarding the OE. Unless allowable, TWC, its

representative(s), and partners will not answer any questions or otherwise discuss the contents of this OE with any potential Applicant or its representative(s). Attempts to ask questions by phone or in person will not be allowed or recognized as valid. Applicants shall rely only on written statements issued by or through TWC designated staff as provided by the Sole Point of Contact in Section 3.5 Sole Point of Contact.

Failure to comply with these restrictions may result in disqualification of Applicant's Application. These restrictions do not preclude discussions between affected parties for the purpose of conducting business unrelated to this OE.

3.6 ADDENDA

Should an addition or correction become necessary after the OE is issued, an Addendum relating the necessary information will be posted to the ESBD. Applicants are responsible for periodically checking the ESBD for addenda or additional information. **Applicants are required to acknowledge the Addenda by returning the signed Acknowledgment of Addenda with the Application/Enrollment Packet. Failure to do so does not absolve an Applicant from the requirements contained within any Addenda.**

ARTICLE IV APPLICATION PROCESS

4.1 DEADLINE

Applications must be received by TWC as prescribed no later than date and time specified in Section 3.2 Schedule of Events.

4.2 GENERAL INFORMATION

Applicants must fully and completely address all requirements described in

this OE. Incomplete or partial Applications will not be considered. Applicants must provide all information that is required in accordance with Section 4.5 Required Application Documents. Applicants shall prepare an Application that clearly and concisely represents its qualifications.

4.3 DISCREPANCIES

In the event of any discrepancies or variations between copies, TWC is under no obligation to resolve the inconsistencies and may make its selection decision, accordingly, including the decision to potentially disqualify an Application. If Applicant fails to designate an "Original" Application as required by Section 4.4 Submission Method, WC in its sole discretion, will determine the version to be used as the original or may disqualify the Application. If the Applicant submits a redacted Application as the "Original," TWC will disqualify the Application, and it will not be reviewed.

4.4 SUBMISSION METHOD

TWC has implemented the eProcurement platform referred to as the TWC Procurement Portal. Applicants must upload all documentation indicated to the TWC Procurement Portal link on the "Open Opportunities" tab.

Submissions by any other method **will not** be accepted.

To respond to this OE, Applicants must register through the TWC Procurement Portal website. There is no charge to register.

Step-by-step instructions are available at: Vendor Registration – Procurement

For step-by-step instructions about the submission process, visit: Creating and Uploading a Submission – Procurement

Any issues with uploading must first be addressed with the TWC Procurement

Portal Technical Support at the contact information included in the Procurement Information Summary and TWC Procurement Portal Instructions to Applicants document.

Applicants must contact the Sole Point of Contact prior to the deadline if there are issues with using the TWC Procurement Portal and an alternative submission method may be required. Failure to contact the Sole Point of Contact well before the deadline to make alternative arrangements will disqualify any subsequent Application submission.

In no event will TWC be responsible or liable for any delay or error in delivery. TWC is not responsible for electronic submissions that are captured, blocked, filtered, quarantined or otherwise prevented from reaching the proper destination server by any TWC anti-virus or other security software.

It is the Applicant's responsibility to appropriately mark and upload the Application to the TWC Procurement Portal by the specified date. Each Applicant is solely responsible for ensuring its Application is submitted in accordance with all Application requirements and ensuring timely receipt by TWC.

Hard copies received will not be accepted or reviewed.

Application must be RECEIVED by TWC by the Application Deadline identified in Section 3.2 Schedule of Events.

4.5 REQUIRED APPLICATION DOCUMENTS

The Completed Enrollment Packets may be submitted at any time during the enrollment period. All forms listed below must be completed in their entirety and uploaded to your Application **as a separate document in Portable Document Format (PDF)**. **Do not submit encrypted or password protected materials or TWC may eliminate such Applications from consideration for contract award.** *The Application will be rejected if the*

Applicant does not submit each form as a separate document with required signatures and date, as applicable. All content added to forms must be typed and cannot be handwritten. Signatures can be either handwritten or electronic and not editable. A valid electronic signature must include a date and time stamp or be accompanied by a certificate (technical log or report) that documents the signing event with the signer's information, date, and time.

For qualified Applicants that submit complete applications, Contracts will be developed as they are approved. The volume of applications may vary during the enrollment period, and Contracts may take three (3) months or more to be finalized, depending upon volume and workload.

4.5.1 Modifications and Withdrawals

Prior to the Application submission deadline in Section 3.2 Schedule of Events, Applicant may: (1) withdraw its Application by deleting the Application in the TWC Procurement Portal; or (2) modify its Application via the TWC Procurement Portal. When amending its Application, Applicant must follow the instructions provided by the TWC Procurement Portal, revising the section(s) intended, submit and finalize.

Note: TWC will reject the Enrollment Packet if its documents are not submitted in the PDF format and name convention as described in this notice and/or if the forms are submitted as encrypted or password protected.

4.6 BINDING OFFER

Applications shall be binding for a period of one hundred eighty (180) days after the Application due date. An Applicant may extend the time for which its Application will be honored.

4.7 FRANCHISE TAX – RIGHT TO TRANSACT BUSINESS IN TEXAS

If applicable, the Texas franchise tax is imposed on each taxable entity formed or organized in Texas or doing business in Texas.

Applicant must be set up in the Texas franchise tax system prior to Contract award if applicable. Texas franchise tax information can be accessed at https://comptroller.texas.gov/taxes/franchise/.

4.8 AMBIGUITY, CONFLICT, OR DISCREPANCY

Applicants must notify the Sole Point of Contact listed in Section 3.5, of any ambiguity, conflict, discrepancy, exclusionary specification, omission, or other error in the OE.

If Applicant fails to properly and timely notify the Sole Point of Contact listed in Section 3.5, of any ambiguity, conflict, discrepancy, exclusionary specification, omission or other error in the OE, whether awarded a Contract or not, the Applicant:

a. Waives any claim of error or ambiguity in the OE and any resulting Contract;

b. Submits an Application at its own risk;

c. May not contest the interpretation by TWC of such provision(s); and

d. Is not entitled to additional compensation, relief, or time by reason of ambiguity, conflict, discrepancy, exclusionary specification, omission, or other error or its later correction.

4.9 TWC RIGHTS

All materials submitted by an Applicant will become the property of TWC. TWC reserves the right to use any and all ideas presented in any Application to this OE. Selection or rejection of any Application does not affect this right.

The rights of TWC include, but are not limited to:

a. Cancellation of this OE at TWC's sole discretion;
b. Suspension of the procurement process and issuance of OE Addenda;
c. Rejection, in whole or in part, of any and all Applications received for this OE
d. Waiver of administrative deficiencies or minor technicalities in any of the Applications;
e. Utilization of any and all ideas presented in the Applications;
f. Directing any Applicant to submit Application modifications addressing subsequent Addenda;
g. Elimination of any requirements that are not met by all Applicants upon notice to all parties submitting an Application;
h. Making typographical corrections to Applications, with the concurrence of the Applicant;
i. Changing computational errors with the concurrence of the Applicant;
j. Requesting Applicants to clarify the Applications;
k. Requesting Applicants to submit additional information pertaining to the Application; and
l. Awarding a Contract without:
    1. Requesting clarification;
    2. Allowing modification;
    3. Discussing;
    4. Negotiating; and/or
    5. Requesting a revised Application/Enrollment Packet.

ARTICLE V APPLICATION EVALUATION

5.1 APPLICATION SCREENING

a. TWC will review Applications for initial compliance with the Submission requirements in Article IV.
b. TWC will automatically disqualify any Application that does not include one of more of the completed and signed (as applicable) documents.
c. Applications received after the deadline specified in Section 3.2 Schedule of Events will be rejected and will not be evaluated or considered for acceptance. TWC is not responsible for Open Enrollment applications that are submitted or received late, illegible, incomplete, or otherwise disqualified due to failure of electronic equipment or operator error.
d. In accordance with Texas Government Code § 2262.055(d), TWC will consider Applicant performance as recorded in the CPA Texas Vendor Performance Tracking System (VPTS), described in Texas Administrative Code, 34 TAC § 20.115.
e. TWC reserves the right to ask questions or request clarification from any Applicant at any time during the screening process.

5.2 REVIEW OF APPLICATIONS

a. TWC will determine whether the Applicant meets all requirements of this OE. To be considered responsive, the Applicant must complete and submit **all required forms in accordance with** Section 3.4 Attachments and Forms.
b. Disqualification of an application can occur when an Applicant fails to:
    1. submit an application in accordance with the requirements of the solicitation; or
    2. submit requested corrections or additional documentation within fourteen (14) days unless another timeframe is specified by TWC.
    3. Disqualifications for conflicts of interest may occur if:

- The applicant is employed full-time with another employer;
- The applicant is employed by a school district as either full- or part-time and is in a position to refer customers to the applicant.

TWC reserves the right to ask questions to determine if a conflict of interest may arise.

5.3 PUBLIC INFORMATION ACT

Information, documentation, and other materials submitted in connection with this Solicitation or resulting Contract may be subject to public disclosure pursuant to the Texas Public Information Act, Texas Government Code, Chapter 552. See **Attachment 1 VR OE T&Cs (12/18/25)**. **TWC may, in its sole discretion (1), disqualify all Applicants that fail to fully comply with the requirements set forth in this section, or (2) offer all Applicants that fail to fully comply with the requirements set forth in this section additional time to comply. Submitting partial or incomplete information that suggests inclusion of confidential information constitutes failure to comply with the requirements set forth in this section.**

5.3.1 Applicant Response

If Applicant asserts that information provided in its Application is exempt from disclosure under the Texas Public Information Act, Applicant must mark and submit two separate, searchable Portable Document Format (PDF) copies (Original Application and "Public Information Act Copy," including attachments, of the Original Application) as identified below. **This copy is in addition to the original and all copies otherwise required under the provisions of this Solicitation**.

a. Mark Original Proposal:

1. Mark the top of the front page with the words "CONTAINS CONFIDENTIAL INFORMATION" in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);
2. Mark the bottom of each page that contains information that Applicant claims is exempt from public disclosure with the words "CONTAINS CONFIDENTIAL INFORMATION";
3. Identify, adjacent to each portion of the Response that Applicant claims are exempt from public disclosure, the claimed exemption from disclosure. Vague and general claims to confidentiality will not be acceptable.

NOTE*:* No redactions are to be made in the Original Response.

b. **Mark Public Information Act Copy of Response:**

1. Mark the copy at the top of the front page with "Public Information Act Copy" in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);
2. Each portion Applicant claims is exempt from public disclosure must be redacted (blacked out); and
3. Identify, adjacent to each redaction, the claimed exemption from disclosure. Each identification provided as required by this subsection (b) must be identical to the redactions identified in subsection (a)(3), above. The only difference in required markings and information between the Original Application and the "Public Information Act Copy" of the Application will be redactions, which can only be made in the "Public Information Act Copy." There must be no redactions in the Original Application.

Applicant should not submit a Public Information Act Copy indicating that the

entire Application is exempt from disclosure. Merely making a blanket claim that the entire Application is protected from disclosure because it contains any amount of confidential, proprietary, trade secret, or privileged information is not acceptable, and this blanket claim will not be considered by TWC.

An Application should not be marked or asserted as copyrighted material. If Applicant asserts a copyright to any portion of its Application, Applicant agrees to reproduction and posting on public websites by the State of Texas, including all other state agencies, without cost or liability and, additionally, agrees to allow the State of Texas to provide a copy of the Application to individuals making a Public Information Act request for the Application.

5.3.2 Contract

Within five (5) Business Days from Contract execution, if the Provider is asserting that certain information in the application is exempt from public disclosure, the Provider must submit a "Public Information Act Copy" of the Original Executed Contract (in addition to the Original Executed Contract) to the TWC Contract Manager by email. The Public Information Act Copy must meet the following requirements:

a. The copy must be clearly marked as "Public Information Act Copy" on the front page in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger).

b. Each portion Provider claims is exempt from public disclosure must be redacted (blacked out); and

c. Provider must identify, adjacent to each redaction, the claimed exemption from disclosure. Each identification provided as required in Subsection b of this section must be identical to those set forth in the Original Application. The only difference in required markings and information between the Original Contract and the "Public Information

Act Copy" of the contract will be redactions, which can only be included in the "Public Information Act Copy." There must be no redactions in the Original Executed Contract.

ARTICLE VI GENERAL TERMS AND CONDITIONS

The Terms and Conditions identified in the Solicitation and **Attachment 1 VR OE T&Cs (12/18/2025)** are applicable to this Solicitation and any Contract resulting from this Solicitation. TWC reserves the right to incorporate additional provisions in the Contract in the best interest of TWC. In the event of a conflict between this Solicitation and applicable laws and regulations, precedence shall be given to the laws and regulations.

6.1 CONTRACT AWARD

TWC intends to award Contract(s) to qualified Applicants throughout the enrollment period and may award multiple Contracts within individual counties or groups of counties.

Entities, Applicants, and/or individuals that are debarred or excluded by the federal government are excluded from receiving federal contracts or certain subcontracts, and certain types of financial and nonfinancial assistance and benefits. Entities, Applicants and/or individuals that are debarred or excluded by the State of Texas are excluded from doing business with the state.

TWC may consider past performance, or any other factor it deems to be in the best interest of TWC or the State of Texas, when determining whether to award a contract to an Applicant.

Participation in a post-award orientation will be required before any services

related to the awarded Contract can be performed.

6.2 CONTRACT TERM

The Contract Term will commence on the fully executed Contract date and expire five (5) years from date of contract execution. TWC reserves the right to cancel for convenience in the event that the Contract has had no expenditures in a twelve-month period during the Contract Term.

The Contract is contingent upon the continued availability of funding. If funds become unavailable through lack of appropriations, legislative budget cuts, amendment of the General Appropriations Act, TWC consolidation of offices, or any other disruption of current appropriations, Termination provisions of **Attachment 1 VR OE T&Cs (1/23/26)** shall apply.

6.3 PAYMENTS

Provider(s) must comply with the Article II Scope of Work, VR-SFP Manual, Chapter 3 Basic Standards, and any other applicable sections of the VR-SFP Manual.

Payments made to Provider(s) will be based on the Fee Schedule shown in Article II Scope of Work when all requirements have been achieved.

6.4 CONTRACT AMENDMENTS

The Contract may be amended only by written agreement signed by both the Provider and TWC.

6.5 NO GUARANTEE OF VOLUME, USAGE OR COMPENSATION

TWC makes no guarantee of volume, usage, or total compensation to be paid to an Applicant under an awarded Contract, if any, resulting from this

Solicitation.

TWC reserves the right to cancel or decline to award a Contract under this Solicitation at any time at its sole discretion.

6.6 GOVERNMENTAL ENTITIES

If Applicant is responding to this Solicitation in its capacity as a governmental entity, certain Terms and Conditions found in this Solicitation, including exhibits and attachments, may not be applicable. Furthermore, to the extent permitted by law, if an Application is received from a governmental entity, TWC reserves the right to enter into an interagency or interlocal agreement with the governmental entity.

6.7 COSTS INCURRED

Applicant understands that issuance of this Solicitation in no way constitutes a commitment by TWC to award a Contract. Additionally, TWC is not liable for any costs incurred by an Applicant in the preparation of an Application to this Solicitation. Costs of developing Applications, preparing for, or participating in Oral Presentations and Site Visits, or any other similar expenses incurred by an Applicant are entirely the responsibility of the Applicant, and will not be reimbursed in any manner by the State of Texas.

6.8 APPLICANT WAIVER-INTELLECTUAL PROPERTY

SUBMISSION OF ANY DOCUMENT TO TWC IN RESPONSE TO THIS SOLICITATION CONSTITUTES AN IRREVOCABLE WAIVER AND AGREEMENT BY APPLICANT TO FULLY INDEMNIFY THE STATE OF TEXAS AND TWC FROM ANY CLAIM OF INFRINGEMENT AGAINST THE STATE OF TEXAS AND TWC REGARDING THE INTELLECTUAL PROPERTY RIGHTS OF APPLICANT OR ANY THIRD PARTY FOR ANY

MATERIALS SUBMITTED TO TWC BY APPLICANT.

6.9 REQUIRED INSURANCE

Providers are responsible for their actions and the actions of their employees and subcontractors. Insurance can provide protection to Providers from claims of negligence made by VR Customers.

Providers must maintain insurance as described in VR-SFP Manual, Chapter 3 Basic Standards when insurance requirements are applicable. Insurance requirements are subject to change after proposed changes have been posted at least 30 days on the Vocational Rehabilitation Providers' Resources page.

6.10 FAILURE TO PERFORM

If the Provider fails to perform in accordance with the provisions of the contract, TWC may upon written notice to the Provider, take adverse action against the Provider, up to and including terminating the Contract in whole or in part. If notice of termination is given, all work by the Provider shall cease on the effective date of the termination, and TWC will not pay for work performed on or after the effective date of termination. Such termination shall not be an exclusive remedy to TWC but shall be in addition to any other rights and remedies provided by law or under the contract. Adverse action, including termination, may result from, but is not limited to:

1. Violation of the terms of the Contract, including but not limited to, failure to perform any portion of the Contract;
2. Any evidence of abuse, neglect, or exploitation of TWC VR customers receiving services from the Provider as substantiated by an investigation conducted by the Provider, an external regulatory or law enforcement agency, or TWC;
3. Any information giving TWC reason to believe that the health or safety of

TWC VR customers is compromised;

4. Any change in ownership or change in control that TWC believes would adversely affect the delivery of services;
    a. Bringing any individual who is debarred by TWC into the Contract in any financial or legal way (such unacceptable arrangements to include, without limitation, any employment, consulting, contracting, subcontracting, partnership, sale, merger, successor, association or joint venture with a debarred individual);
5. Any real or apparent conflict of interest giving TWC reason to believe that continuation of the Contract is not in the best interest of TWC, the state, or TWC VR customers; or
6. Any violation of state or federal law.

6.11 REMEDIES

The Provider and any of its subcontractors associated with the Contract will remedy in a timely manner any weaknesses, deficiencies, or program noncompliance found as a result of a review, audit or investigation, and any performance or fiscal exceptions found by TWC, the SAO, the federal funding agency, their successor agencies, or any of their duly authorized representatives. TWC may withhold or recoup payments due or paid under the contract, in whole or in part, in the event of the Vendor's noncompliance with any term or provision of the contract, any federal or state law or regulation, or any TWC rules or standards, including, but not limited to, the requirements specifically stated in the contract, relating to the Vendor's performance under the contract, as pursuant to Title 40 TAC § 858.9 or any other appropriate remedies deemed necessary by TWC.

6.12 CHANGE OF OWNERSHIP OR FINANCIAL CONDITION

During the term of the Contract or any extension or renewal thereof, the Provider shall notify TWC in writing of any substantial change in the ownership or control of the Provider as soon as possible, but no later than thirty (30) days prior to its occurrence. Provider must also notify TWC in writing of any change in financial condition as soon as possible, but no later than ten (10) days after its occurrence.

The failure to notify TWC of a change of ownership or control or change in financial condition will be sufficient grounds for rejecting the Application or terminating the Contract. For the purposes of this section, examples of a substantial change in financial condition are events such as insolvency, bankruptcy, or receivership.

6.13 SEVERABILITY

If any provision or portion of this Solicitation is illegal, void, or unenforceable, the other provisions will not be affected.

<End of Solicitation>